



POLICE DEPARTMENT

January 29, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202307259 (Incident Date: August 4, 2023) regarding Sergeant John Felicetti, Tax No. 953850 (PODS No. C-032682)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202307259, pertaining to Sergeant John Felicetti. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Felicetti would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Sergeant Felicetti has been a member of the New York City Police Department for twelve (12) years, has no formal Department disciplinary history, and no prior substantiated CCRB allegations. Thus, a mitigated penalty is appropriate.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days for the substantiated misconduct.

Sincerely,

Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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MOHAMMAD KHALID
INTERIM CHAIR

February 3, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

**RE: CCRB Case No. 202307259 (Incident Date: August 4, 2023) regarding
Sergeant John Felicetti, Tax No. 953850 (PODS No. C-032682)**

Commissioner Tisch:

I am writing in response to the letter from Deputy Commissioner, Michael P. Baker, dated January 29, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Sergeant Felicetti and impose a mitigated penalty. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to the Deputy Commissioner’s notification.

Deputy Commissioner Baker states that “the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Sergeant Felicetti has been a member of the New York City Police Department for twelve (12) years, has no formal Department disciplinary history, and no prior substantiated CCRB allegations. Thus, a mitigated penalty is appropriate.” CCRB disagrees with this determination.

In this matter, Patrol Guide procedure 207-28 states that when civilians wish to file a complaint in person, officers must interview the complainant, provide the civilian with a civilian complaint report, and assist or allow another person to assist the complainant with completing the report. Officers must also prepare a civilian complaint report and inform the Civilian Complaint Review Board. It is undisputed that § 87(2)(b) asked Sgt. Felicetti to file a complaint, and Sgt. Felicetti failed to do so. Although Sgt. Felicetti independently determined that § 87(2)(b) complaints could either be addressed in court or were not valid, Sgt. Felicetti did not have the authority to exercise discretion as to whether to file the complaint.

Additionally, Patrol Guide procedure 212-123 states that officers must activate their BWCs prior to engaging in any police action and record any interactions that escalate to become adversarial or may hold evidentiary value. It was undisputed that § 87(2)(b) was upset when he arrived at the

stationhouse, and that the interaction between him, the other officers and Sgt. Felicetti was adversarial. Sgt. Felicetti conceded that he did not activate his BWC because it was charging while he was performing administrative duties and that when he spoke to § 87(2)(b) he forgot to equip his BWC, violating the Patrol Guide.

Based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sgt. Felicetti in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



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Re: CCRB Case No. 202307259 (Incident Date: August 4, 2023) regarding Sergeant John Felicetti, Tax No. 953850 (PODS No. C-032682)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated February 3, 2025, regarding the CCRB case involving Sergeant John Felicetti and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Felicetti for the reasons expressed in my January 29, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days for the substantiated misconduct.

Sincerely,

Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office